

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel (I)	Team: Intake	CCRB Case #: 201401156	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 02/06/2014 1:00 AM	Location of Incident: § 87(2)(b) /121 Precinct Stationhouse	18 Mo. SOL 8/6/2015	Precinct: 121
Date/Time CV Reported Thu, 02/06/2014 9:16 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/06/2014 9:16 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael Dicecco	03303	903799	121 PCT
2. POM Daniel Golat	09913	950506	121 PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Vincent Agostino	25992	945355	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Michael Dicecco	Abuse: Sgt. Michael Dicecco supervised the stop of § 87(2)(b) at § 87(2)(b) in Staten Island.	A . Complainant Uncooperative
B . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b)	B . Complainant Uncooperative
C . An officer	Abuse: An officer frisked § 87(2)(b)	C . Complainant Uncooperative
D . POM Daniel Golat	Discourtesy: PO Daniel Golat spoke rudely to § 87(2)(b)	D . Complainant Uncooperative
E . POM Daniel Golat	Abuse: PO Daniel Golat searched § 87(2)(b)	E . Complainant Uncooperative
F . An officer	Abuse: An officer strip-searched § 87(2)(b) at the 121 Precinct stationhouse.	F . Complainant Uncooperative
G . SGT Michael Dicecco	Abuse: Sgt. Michael Dicecco refused to provide his name and shield number to § 87(2)(b) at the 121 Precinct Stationhouse.	G . Complainant Uncooperative
H . SGT Michael Dicecco	Discourtesy: Sgt. Michael Dicecco spoke rudely to § 87(2)(b) at the 121 Precinct stationhouse.	H . Complainant Uncooperative
I . SGT Michael Dicecco	Abuse: Sgt. Michael Dicecco threatened to arrest § 87(2)(b) at the 121 Precinct stationhouse.	I . Complainant Uncooperative

Case Summary

§ 87(2)(b) and § 87(2)(b) contacted the CCRB to file the following complaint on February 6, 2014, and were scheduled for interviews at the CCRB on February 13, 2014. On February 13, 2014, neither § 87(2)(b) nor § 87(2)(b) appeared for their scheduled appointment and failed to provide prior cancellation notice.

The CCRB contacted § 87(2)(b) and § 87(2)(b) on February 14, 2014, and left a voicemail for them. Missed appointment letters were mailed to § 87(2)(b) and § 87(2)(b) later that day. The CCRB contacted § 87(2)(b) and § 87(2)(b) on February 19, 2014, and left a voicemail requesting call back. A final letter was sent to § 87(2)(b) and § 87(2)(b) later that day.

On February 24, 2014, the CCRB received a voicemail from § 87(2)(b)'s father, § 87(2)(b), stating that his daughter was § 87(2)(b) and would like to pursue the complaint. The CCRB contacted § 87(2)(b) on February 24, 2014, and § 87(2)(b) provided two telephone numbers for § 87(2)(b). The CCRB attempted to contact § 87(2)(b) on March 17, 2014. The CCRB left a voicemail at one of the numbers, and at the second number the facility could not confirm or deny if § 87(2)(b) was available due to patient confidentiality. The CCRB contacted § 87(2)(b) for a second time to inform him of this issue on March 17, 2014, and a voicemail was left. The CCRB placed a third call to § 87(2)(b) on March 14, 2014, and a voicemail was left. On March 21, 2014, § 87(2)(b) contacted the CCRB and left a voicemail providing two additional numbers at which to reach his daughter. The CCRB contacted those numbers later that day, one of which was a fax machine, and the second of which a person could not confirm or deny if § 87(2)(b) was receiving drug treatment, but took a message for her if she happened to be present. On March 28, 2014, a letter was mailed to § 87(2)(b) at § 87(2)(b). A Lexis Nexis search conducted on April 2, 2014, yielded no new viable contact information for § 87(2)(b). On April 3, 2014, the CCRB contacted § 87(2)(b) to let him know that the case would likely be closed, and provided instructions on how the case could be reopened. § 87(2)(b) contacted the CCRB on April 4, 2014, and left a voicemail confirming a cellphone number for § 87(2)(b) and stated she could be out of rehab by April 17, 2014. The CCRB placed two calls to § 87(2)(b)'s cellphone on April 4, 2014, and April 17, 2014. On both calls a busy signal was received and voicemails could not be left. A final call was placed to § 87(2)(b) on April 17, 2014, and a voicemail was left.

A search of the NYC Department of Correction Inmate Lookup conducted on April 18, 2014, confirmed neither § 87(2)(b) nor § 87(2)(b) are incarcerated. § 87(2)(g)

It is therefore recommended that this case be closed as **complainant uncooperative**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date